

2031.060(h); 2033.080(d).) Because Defendants are the unsuccessful moving party, they are not entitled to sanctions.

Moreover, the court expressly advised the parties in its June 8, 2026 order that failure to engage in a good faith meet and confer process or failure to file a joint declaration as ordered would result in sanctions under CCP § 177.5. While Defendants' counsel did conduct a telephone conference and filed a declaration reporting that conference, the declaration fails to comply with the court's specific directives to identify the outstanding disputes and the parties' positions on each issue.

Motion for Protective Order DENIED.

Request for Sanctions DENIED.

Case Management Conference continued to 11.19.26. The parties are ordered to file with the Court ten days in advance of the continued CMC a joint declaration of counsel addressing whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in this case. The updated Case Management statement shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling:

Motion to Strike is MOOT based on the court's ruling on the demurrer to the First Amended Complaint.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509943	DOE VS INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA	DEMURRER ON 1ST AMENDED COMPLAINT OF JANE DOE BY INDEMP RADIANCE INC. DBA MESSAGE ENVY - LA QUINTA

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions

or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

1st cause of action for sexual battery and 2nd cause of action for gender violence:

In the 1st cause of action, a plaintiff must state facts that (1) the defendant intended to cause a harmful or offensive contact with the plaintiff's sexual organ and sexually offensive contact resulted, either directly or indirectly, OR the defendant intended to cause a harmful or offensive contact with plaintiff by use of defendant's sexual organ and sexually offensive contact resulted, OR the defendant caused an imminent fear of a harmful or offensive contact with plaintiff's sexual organ or with plaintiff by use of defendant's sexual organ, and a sexually offensive contact resulted, either directly or indirectly, OR defendant caused contact between a sexual organ from which a condom had been removed and plaintiff's sexual organ, OR defendant caused contact between a sexual organ and plaintiff's sexual organ from which defendant had removed a condom. (CACI 1306.)

In the 2nd cause of action, for gender violence under Civil Code § 52.4, the elements are: (1) one or more acts that would constitute a criminal offense under state law that has an element of use, attempted use, or threatened use of physical force against the person or property of another, committed at least in part based on the gender of the victim; OR (2) a physical intrusion or physical invasion of a sexual nature under coercive conditions. (Cal. Civ. Code § 52.4.)

Respondeat Superior:

Plaintiff claims that there are sufficient facts to support liability for sexual battery (and gender violence) under the theory of respondeat superior. In the motion, Defendant noted that respondeat superior applies when facts show that the actor was an employee or agent and that the agent was acting within the scope of employment or agency when the harm occurred. (See CACI 3701.) Defendant contends that Plaintiff failed to state facts which showed either (1) that the sexual battery / gender violence occurred at the direction of Defendant, or (2) that the sexual battery / gender violence occurred within the scope of the employment / agency relationship. The FAC states that the sexual battery and gender violence was "done for the purpose of sexual arousal, sexual gratification, and/or sexual abuse." (FAC, ¶58.) Further, it is alleged that the conduct was "sexually motivated." (FAC, ¶ 68.) It goes on to conclude that Defendant is liable under the doctrine of respondeat superior. Defendant contends that these statements fail to show an action within the scope of employment.

In the Opposition, Plaintiff contends that there are sufficient facts to support that the incident did occur within the scope under the enterprise-risk analysis found in the *Farmers* case which discussed the employee's conduct in the context of risks inherent in the business or enterprise of the principal. (Plaintiff's Opposition 4: 16-19; see also *Farmers Ins. Group v. Cty of Santa Clara* (1995) 11 Cal.4th 992.) Plaintiff appears to claim that as the alleged assault took place during a massage appointment at a spa, the assault

must be within the scope of employment. This, however, is an incomplete analysis of the standard applicable to Plaintiff's claims and an incorrect statement of the applicable law.

In *Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, the court addressed vicarious liability of a hospital for sexual battery alleged to have occurred when an ultrasound technician was performing an obstetric ultrasound. (Id. at 291.) In the analysis of the summary judgment appeal, the Cal. Supreme Court considered the history of cases evaluating vicarious liability since the departure from the traditional rule that the scope of employment only covers acts motivated by a desire to serve the employer's interests. (Id. at 297-302.) After discussing many cases, including *Farmers Ins. Group v. County of Santa Clara* (1995) 11 Cal.4th 992, 1003-1005 cited by Plaintiff, the court concluded that " ... a sexual tort will not be considered engendered by the employment unless its motivating emotions were fairly attributable to work related events or conditions The technician's decision to engage in conscious exploitation of the patient did not arise out of the performance of the examination, although the circumstances of the examination made it possible. 'If ... the assault was not motivated or triggered off by anything in the employment activity but was the result of only propinquity and lust, there should be no liability.'" (Id. at 301, quoting *Lyon v. Carey* (1976) 533 F.2d 649, 655.)

Here, the FAC does not state facts to show that the alleged assault was motivated by the employment or had otherwise arisen out of the performance of the massage, and, in fact, notes that the motivation was sexual assault, sexual gratification, or a desire to sexually abuse Plaintiff. Accordingly, the FAC fails to state facts that sexual battery or gender violence were within the scope of employment.

Ratification:

In the Opposition, Plaintiff contends that there are sufficient facts to show that Defendant ratified the conduct of Morales. Plaintiff correctly notes in her Opposition that a ratification confers liability as a result of conduct by the principal which occurs subsequent to the alleged act. (Plaintiffs Opposition 6:23-7 :4.) Further, as indicated in the moving papers, a ratification is unequivocal and must be made with a full knowledge of all material facts involved in the authorization before the ratification – which can only be made in the same manner to convey original authority to act – can be satisfied. (See *Earle v. Lambert* (1962) 205 Cal.App.2d 452, 457; *Bate v. Marsteller* (1959) 175 Cal.App.2d 573, 582; see also Civil Code § 2310.)

Here, Plaintiff concludes that Defendant has knowledge of prior incidents involving Morales prior to the alleged assault. This cannot serve as ratification of the alleged assault as the affirmative act alleged - knowledge of prior incidents - occurred prior to the alleged incident. Next, Plaintiff claims that she was discouraged from cancelling her membership, offered to be transferred to a different location, downplayed the allegations, suggested the conduct was a matter of technique, failed to take immediate protective action, and affirmatively communicated that the therapist would continue treating other customers. (FAC, ¶ 49.) Many of these allegations are conclusions and not facts and, therefore, fail to serve as the basis for the claim of liability under ratification. Further, the factual statements such as the allegation that Plaintiff was discouraged from cancelling her membership fail to show ratification by Defendant of sexual battery.

Further there are insufficient facts to show sufficient knowledge of the material facts of the unauthorized act or the authority of the on-duty manager to ratify the alleged battery. Notably, the FAC also makes claims that a Defendant-employee advised the

Plaintiff that the alleged behavior was inappropriate, that Defendant-employees provided statements to the investigating police officers, and that other individuals identified as managers provided updates to Plaintiff including that the therapist had been located and that her requested cancellation was processed.

3rd cause of action for intentional infliction of emotional distress:

In order to establish a claim for Intentional Infliction of Emotional Distress, the Plaintiff must establish facts that (1) INDEMP's conduct was outrageous; (2) INDEMP intended to cause the Plaintiff emotional distress OR acted with reckless disregard of the probability that Plaintiff would suffer emotional distress knowing that Plaintiff was present when the conduct occurred; (3) Plaintiff suffered severe emotional distress; and (4) INDEMP's conduct was a substantial factor in causing the Plaintiffs severe emotional distress. (See CACI 1600.)

To be deemed "outrageous" conduct must exceed all bounds of that usually tolerated in a civilized community." (*Potter v. Firestone Tire & Rubber Co.* (1993) 6 Cal. 4th 965.) The conduct must also be directed at Plaintiff. (*Christensen v. Sup Ct.* (1991) 54 Cal. 3d. 868.) Further, it must be intended to inflict injury or engaged in with the realization that injury will result. (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050-51.)

Plaintiff contends that Plaintiff, in her Opposition, states that the sexual assault, which admittedly was not carried out by Defendant, is sufficiently outrageous conduct. With respect to Defendant, Plaintiff concludes that the outrageous conduct was operating a massage business, adopting policies from Massage Envy, minimizing Plaintiff's experience, suggesting Morales "may just massage that way", informing Plaintiff that Morales would continue performing massages, and failing to take immediate protective action. (Plaintiff's Opposition 8:24-9:3.)

Plaintiff's first claim - that Defendant operated a massage business - cannot be deemed outrageous and the adoption of policies claim is conclusory and, therefore, these cannot serve as the basis for a claim of outrageous conduct. Next are the alleged statements by an unidentified manager that Morales massaged that way and that he would continue performing massages. The law does not permit liability for intentional infliction of emotional distress involving "insults, indignities, threats, annoyances, petty oppressions, or other trivialities" (See *Yurick v. Sup. Ct.* (1989) 209 Cal.App.3d 1116, telling an employee that she was senile and a lair did not amount to outrageous conduct.) Here, the act of making the above statements is not outrageous under the applicable law.

Also, failing to take immediate corrective action is a conclusion. This statement lacks specific facts as to what action was done to Plaintiff that caused her emotional distress as the FAC alleges that Defendant employees took a report, expressed concern, informed Plaintiff that the alleged conduct was inappropriate, voluntarily submitted to interviews with police officers, contacted Plaintiff after the incident to complete her requested cancellation and let her know that the therapist was located by the police. Further, if Plaintiff is claiming an omission as the basis for the intentional infliction of emotional distress, then there must be a showing of a duty to act by Defendant that it failed to meet.

Finally, Plaintiff contends that Defendant has misstated the standard relating to the element of intent. In the motion, Defendant points out that the actor must have acted with intent to cause emotional distress or with reckless disregard of the probability that the act would cause emotional distress, knowing that the Plaintiff was present when the conduct occurred. (CACI 1600.) Defendant correctly noted that the conduct at issue in a claim for

IIED must be directed at the complaining party. (*Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868.) Plaintiff contends that the factual allegations which support an inference of reckless disregard are that “Defendant knowingly continued business practices that exposed customers to a known risk of sexual assault and therefore minimized Plaintiff’s report.” (Opposition, 9:15-17.) These allegations do not meet the standard for intent required or are otherwise not conduct directed at the Plaintiff.

Demurrer as to 1st, 2nd and 3rd Causes of Action SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 15 days.

Case Management Conference rescheduled from 7.28.26 to 9.29.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2600719	MUNOZ MACIAS VS ARMANDO BAR & GRILL, INC. A CALIFORNIA CORPORATION	MOTION TO COMPEL ARBITRATION BY FRANCISCO DE LA CRUZ, JOHNNY MENDEZ, ARMANDO ALVAREZ, JAVIER ROSALES

Tentative Ruling:

Motion to Compel Arbitration GRANTED.

Case Management Conference set for 8.17.26 is vacated.

Status hearing re arbitration scheduled for 1.14.27. Parties to submit a declaration 10 days prior to the status hearing addressing arbitration status.